

Court No. - 40

Case :- WRIT - C No. - 920 of 2023

Petitioner :- Prince Sharma and 7 Others

Respondent :- State of U.P. and another

Counsel for Petitioner :- Amit Kumar Asthana

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Vivek Kumar Singh,J.

Heard Sri Virendra Singh, Advocate holding brief of Sri Amit Kumar Asthana, learned counsel for the petitioners and learned Standing Counsel for the State respondent no.1.

Present writ petition is preferred with request to issue direction to the second respondent to grant electricity connection of 2 KW load on payment of usual charges to the petitioners within some stipulated period.

Learned counsel for the petitioners submits that in June, 2022 the petitioners have applied for grant of fresh electricity connection in their respective plots in the office of second respondent. As per provisions of Section 43 of Electricity Act, 2003 it is the duty of the respondents to install the meter and give electric supply within one month failing which the respondents are liable to pay Rs.1000/- per day till electric supply is given but inspite of sufficient time the electricity connection has not been accorded in favour of the petitioners till date.

Learned Standing Counsel submits that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained Act. The petitioners can pursue the remedy as is available to them under the Electricity Act, 2003 read with provisions of U.P. Electricity Code, 2005.

No useful purpose would be served in keeping the writ petition pending.

In view of above, without expressing any opinion on the merits of the issue and considering the facts and circumstances of the case and with the consent of parties, this writ petition is disposed of finally with a direction to the Vice President, Noida Power Company Limited (NPCL) Electric Sub-station, Knowledge Park-IV, Greater Noida, U.P. (respondent no.2) to look into the grievance of the petitioners

and redress the same within a period of four weeks from today from the date of production of a certified copy of this order before him.

Order Date :- 6.2.2023
RKP